SPECIAL CONDITIONS FOR CONDUCTING COMMERCIAL ACTIVITIES IN THE TERRITORY OF THE LIEPAJA INDUSTRIAL PARK (LIP)

This document defines the basic requirements for the Liepaja Industrial Park tenants (hereinafter - LIP tenants) in order to ensure achievement of the strategic goals of the Liepaja Industrial Park. Guided by the "Long-term Development Strategy of the Liepaja Industrial Park for the period 2023-2038", and in compliance with the current enactments, this document sets sustainability standards that are essential for regional economic growth and strengthening international competitiveness. The LIP tenants are invited to promote innovative and ecologically responsible business practices that contribute to the development of the Liepaja Industrial Park as a dynamic and sustainable business environment.

1. DEFINITIONS

1.1. "Zero-emission building" in accordance with Directive (EU) 2024/1275 (Energy Performance of Buildings Directive) of the European Parliament and the Council (hereinafter – the EU Directive 2024/1275) Article 2, Paragraph 2, Article 11 is a very high energy performance building, and it does not need to supply energy or requires very little energy, produces no on-site emissions from fossil fuels, and produces no or very little operational emissions;

1.2. “Nearly zero-energy building” in accordance with the EU Directive 2024/1275 Article 2, Paragraph 3, means a building with a very high energy performance, and nearly zero or very low amount of energy required is covered to a very significant extent by energy from renewable sources, including energy from renewable sources produced on-site or energy from renewable sources produced nearby;

1.3. “Deep renovation” in accordance with the EU Directive 2024/1275 Article 2, Paragraph 20, means a renovation which is in line with the ‘energy efficiency first’ principle, which focuses on essential building elements, and which transforms a building or building unit:

a) before 1 January 2030, into a nearly zero-energy building;
b) from 1 January 2030, into a zero-emission building

1.4. “Major renovation” in accordance with the EU Directive 2024/1275 Article 2, Paragraph 22, means the renovation of a building where one of the provisions fulfills:

a) the total cost of the renovation relating to the building envelope or the technical building systems is higher than 25 % of the value of the building, excluding the value of the land upon which the building is situated; or
b) more than 25 % of the surface of the building envelope undergoes renovation.

2. REQUIREMENTS TO THE LIP TENANTS

2.1. The LIP tenants are expected to conduct commercial activities in the field of smart specialization, which includes knowledge-intensive bioeconomy, biomedicine, medical technology, pharmaceuticals, photonics and smart materials, technology and engineering systems, smart energy and mobility, information and communication technology and/or engage in innovation or produce innovative or high value-added products.

2.2. The average salary of employees of the newly created jobs must exceed the average salary in the relevant sector of the national economy in the relevant planning region.

2.3. The LIP tenant shall ensure a certain amount of investment, incl. investments in development and research, net turnover, volume of exports, number of jobs and average salary in accordance with the contract for granting the right of superficies.

2.4. The LIP tenant shall promote active cooperation and implementation of circular economy principles by cooperating with other tenants of the park. This includes the use of common spaces, facilities and infrastructure, as well as the sharing of raw materials, energy and water, the use of waste and by-products as resources for other processes or businesses, waste reduction and recycling.

2.5. The LIP tenant shall promote optimization and adaptation of production processes to ensure efficient use of resources, reduction of emissions and reduction of environmental impact. This includes the use of modern technology and innovation to improve productivity, reduce waste and increase the sustainability of production. In addition, the tenant should attempt to make use of renewable energy sources such as solar or wind energy to reduce emissions and energy consumption.

2.6. The LIP tenant shall contribute to the prevention of negative impacts of partners in the supply, production and distribution chain on the environment and human rights.

3. CONSTRUCTION

3.1. Construction of new non-residential buildings

3.1.1. New non-residential buildings must be built as zero-emission buildings. If it is economically and technically possible, buildings should be able to respond to external signals (weather changes, availability of renewable energy, etc.) and adjust energy use, production or storage. Special attention should be paid to optimal indoor environmental quality, adaptability to climate change, fire safety and environmental accessibility for people with special needs.

3.1.2. New non-residential buildings should be designed to optimize their solar energy production potential based on solar irradiance at the facility and install solar energy technologies in a cost-effective manner where technically and economically feasible.

3.2. Renovation of existing non-residential buildings

3.2.1. If it is technically and economically possible, existing non-residential buildings should undergo deep renovation. Deep renovation of existing non-residential buildings can be carried out gradually.

3.2.2. If it is not possible to carry out deep renovation in an existing non-residential building due to technical or economic reasons, major renovation must be carried out. During the renovation, high-efficiency alternative systems should be used as far as it is technically, functionally and economically possible. Special attention should be paid to the optimal quality of the indoor environment, adaptability to climate change, disposal of hazardous substances and materials, fire safety and accessibility of the environment for people with special needs.

3.3. Construction of new non-residential buildings and renovation of existing non-residential buildings

3.3.1. As far as it is technically and economically possible, environmentally friendly and renewable materials should be used in the construction and renovation of buildings, in compliance with the laws and regulations of the Republic of Latvia and the European Union regarding environmentally friendly and sustainable construction, as well as the recommendations and requirements of the applicable certification system (e.g. LEED, BREEAM).

3.3.2. Buildings must be equipped with self-regulating devices for individual temperature regulation in each room or in a certain heated or cooled zone, and, where appropriate, with hydraulic balancing (in the case of renovation of existing non-residential buildings, when heat generators or cold generators are changed). In addition, buildings must be equipped with measuring devices and control devices for indoor air quality monitoring and regulation (in the case of renovation of existing non-residential buildings, if it is technically and economically possible).

3.3.3. If it is technically and economically possible, buildings should be equipped with automation and control systems that perform the following functions:

a) constantly monitor, record, analyze and provide opportunities to correct the use of energy;
b) comparatively evaluate the building's energy performance, reveal the efficiency losses of the building's engineering systems and inform the person in charge of the building or the manager of the building's engineering systems on the possibilities of improving energy efficiency;
c) ensure communication with the connected engineering systems of the building and other devices inside the building and is interoperable with the engineering systems of the building, regardless of the variety of proprietary technologies, devices and manufacturers;
d) monitor the indoor environment quality.

3.3.4. The buildings should be equipped with automatic lighting control devices capable of detecting presence in appropriate areas.

3.3.5. If a car parking lot is built next to a new non-residential building, or in the case of an existing non-residential building the renovation affects a car parking lot with more than 5 (five) car parking spaces, a charging point must be installed and the possibility of expanding them must be provided. In addition, bicycle sheds should be installed.

4. DOCUMENTS TO BE SUBMITTED.

4.1. Construction and energy efficiency of buildings

4.1.1. Simultaneously with the application for conclusion of the contract on granting the right of superficies in the LIP territory and the documentation of the construction intention (*minimum composition of the construction design*), the LIP tenant shall submit to the Liepaja SEZ Authority:

4.1.1.1. Temporary energy certificate of the building (registered in the Construction Information System);

4.1.1.2. After putting the building into operation, the building energy certificate shall be submitted (registered in the Construction Information System);

4.1.1.4. If applicable, the LEED and BREEAM certificates of the International Building Sustainability Assessment System.

4.2. Business and sustainability

4.2.1. Upon starting production and/or providing services and/or in case of alterations in the submitted documents, the LIP tenant shall submit to the Liepaja SEZ Authority:

4.2.1.1. Sustainability risk assessment and report in accordance with European Parliament and Council Directive 2022/2464 (Corporate Sustainability Reporting Directive) standards;

4.2.1.2. Corporate governance standards;

4.2.1.3. By April 15 of the calendar year, a statistical report for the previous year, which includes information on net turnover, export volumes, investments made, incl. in the development and research, number of jobs and average salary, incl. a list of employment contracts;

4.2.1.4. By April 15 of the calendar year, the monitoring report for the previous year, which includes information on monitoring the use of energy resources, incl. on energy consumption, renewable energy use, and emission levels, if any, as well as the circular economy data on material recycling and reuse in the LIP and elsewhere;

4.2.1.5. If applicable, patents, licenses and/or other documents certifying the novelty of the manufactured product and/or the service provided;

4.2.1.6. Other documents at the request of the Liepaja SEZ Authority.